Number 6 *of* 2018

DOMESTIC VIOLENCE ACT 2018

REVISED

Updated to 10 February 2021

This Revised Act is an administrative consolidation of the *Domestic Violence Act 2018*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Health (Amendment) Act 2021* (1/2021), enacted 7 March 2021, and all statutory instruments up to and including the *Harassment, Harmful Communications and Related Offences Act 2020 (Commencement) Order 2021* (S.I. No. 53 of 2021), made 9 February 2021, were considered in the preparation of this Revised Act.

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DOMESTIC VIOLENCE ACT 2018

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An Act to consolidate the law on domestic violence; to provide for emergency barring orders in certain circumstances; to provide for evidence to be given through television link in certain proceedings; to provide for the right of an applicant to be accompanied in certain proceedings; to provide for the obtaining of the views of a child in certain proceedings; to provide for the giving of information on support services to victims of domestic violence; to provide for the making of recommendations for engagement with certain services by respondents; to provide for restrictions on those present in court during certain proceedings; to prohibit the publication or broadcast of certain matters; to provide for an offence of forced marriage; to repeal provisions for exemption, in certain cases, from minimum age requirements for marriage; for those and other purposes to repeal the Domestic Violence Act 1996 and the Domestic Violence (Amendment) Act 2002 and to provide for the consequential amendment of certain other enactments; and to provide for related matters

[8*th May*, 2018]

Be it enacted by the Oireachtas as follows:

PART 1

Preliminary and General

Short title and commencement

1. (1) This Act may be cited as the Domestic Violence Act 2018.

(2) This Act shall come into operation on such day or days as the Minister may by order or orders appoint either generally or with reference to any particular purpose or provision and different days may be so appointed for different purposes or different provisions, and for the repeal of different enactments or provisions of enactments effected by *section 3*.

Interpretation

2. (1) In this Act—

"Act of 1964" means the Guardianship of Infants Act 1964;

"Act of 1976" means the Family Home Protection Act 1976;

"Act of 1991" means the Child Care Act 1991;

(b) the Domestic Violence Act 1996;

(c) the Domestic Violence (Amendment) Act 2002.

Expenses

4. The expenses incurred by the Minister and the Minister for Children and Youth Affairs in the administration of this Act shall, to such an extent as may be sanctioned by the Minister for Public Expenditure and Reform, be paid out of moneys provided by the Oireachtas.

PART 2

Court Proceedings

Factors or circumstances to which court shall have regard in determining applications for specified orders

5. (1) Nothing in *subsection (2)* shall be construed as limiting the power of a court to make a specified order under this Act.

(2) In determining an application for a specified order, the court shall have regard to all the factors or circumstances that it considers may have a bearing on the application including where relevant:

(a) any history of violence inflicted by the respondent on the applicant or a dependent person;

(b) any conviction of the respondent for an offence under the Criminal Justice (Theft and Fraud Offences) Act 2001 that involves loss to, or is to the prejudice of, the applicant or a dependent person;

(c) any conviction of the respondent for an offence that involves violence or the threat of violence to any person;

(d) whether any violence inflicted by the respondent on the applicant or a dependent person is increasing, or has increased, in severity or frequency over time;

(e) any exposure of any dependent person to violence inflicted by the respondent on the applicant or any other dependent person;

(f) any previous order under this Act or the Act of 1996 made against the respondent with regard to any person;

(g) any history of animal cruelty by the respondent;

(h) any destruction or damage caused by the respondent to—

(i) the personal property of the applicant, the respondent or a dependent person, or

(ii) any place where the applicant or a dependent person resides;

(i) any action of the respondent, not being a criminal offence, which puts the applicant or a dependent person in fear for his or her own safety or welfare;

(j) any recent separation between the applicant and the respondent;

(k) substance abuse, including abuse of alcohol, by the respondent, the applicant or a dependent person;

"supervision order" means a supervision order under the Act of 1991.

Application of section 9(2) of Family Home Protection Act 1976

13. (1) Where an application for a barring order or a safety order is made against the spouse of the applicant, subsection (2) of section 9 of the Act of 1976 shall apply—

(a) between the making of the application for the order and the determination of that application, and

(b) if that order is made, while that order is in force,

as it applies between the institution and final determination of matrimonial proceedings to which that section relates.

(2) The court which is empowered under subsection (2)(b) of section 9 of the Act of 1976 to grant permission for a disposition or removal of household chattels within the meaning of that section is, notwithstanding anything in section 10 of that Act, the court before which the proceedings, including proceedings for a barring order or a safety order, have been instituted.

Application of section 34(2) of Civil Partnership and Certain Rights and Obligations of Cohabitants Act 2010

14. (1) Where an application for a barring order or a safety order is made against the civil partner of the applicant, subsection (2) of section 34 of the Act of 2010 shall apply—

(a) between the making of the application for the order and its determination, and

(b) if that order is made, while that order is in force,

as it applies between the institution and final determination of dissolution proceedings to which that section relates.

(2) The court which is empowered under subsection (2)(b) of section 34 of the Act of 2010 to grant permission for a disposition or removal of household chattels within the meaning of that section is, notwithstanding anything in section 140 of that Act, the court before which the proceedings, including proceedings for a barring order or a safety order, have been instituted.

Hearing of applications under Acts together

15. (1) Where an application is made to the court for an order under this Act, the court may, on application to it in the same proceedings and without the institution of proceedings under one or more of the Acts referred to in *subsection (2)*, if it appears to the court to be proper to do so, make one or more of the orders specified in that subsection.

(2) The orders specified for the purposes of *subsection (1)* are orders made under—

(a) section 11 of the Act of 1964,

(b) section 5, 5A, 5B, 6, 7 or 21A of the Family Law (Maintenance of Spouses and Children) Act 1976,

(c) section 5 or 9 of the Act of 1976,

(2) For the purposes of *subsection (1)*, a person's behaviour has a serious effect on a relevant person if the behaviour causes the relevant person—

(a) to fear that violence will be used against him or her, or

(b) serious alarm or distress that has a substantial adverse impact on his or her usual day-to-day activities.

(3) A person who commits an offence under *subsection (1)* is liable—

(a) on summary conviction, to a class A fine or imprisonment for a term not exceeding 12 months, or both, and

(b) on conviction on indictment, to a fine or imprisonment for a term not exceeding 5 years, or both.

(4) In this section, a person is a "relevant person" in respect of another person if he or she—

(a) is the spouse or civil partner of that other person, or

(b) is not the spouse or civil partner of that other person and is not related to that other person within a prohibited degree of relationship but is or was in an intimate relationship with that other person.

Relationship between defendant and victim as aggravating factor in sentencing for certain offences

40. (1) Where a court is determining the sentence to be imposed on a person for a relevant offence, the fact that the offence was committed by the person against a relevant person shall be treated, for the purpose of determining the sentence, as an aggravating factor.

(2) Subject to *subsection (3)*, where *subsection (1)* applies the court shall impose a sentence which is greater than that which would have been imposed if the person against whom the offence was committed was not a relevant person.

(3) *Subsection (2)* shall not apply where the court considers that there are exceptional circumstances justifying it not applying that subsection.

(4) The sentence imposed as a result of the application of *subsection (2)* shall not be greater than the maximum sentence permissible for the relevant offence concerned.

(5) In this section—

"Act of 1990" means the Criminal Law (Rape) (Amendment) Act 1990;

"relevant offence" means—

(a) an offence under sections 2 to 15 of the Non-Fatal Offences against the Person Act 1997,

F1**[**(aa) an offence under section 2 or 3 of the Harassment, Harmful Communications and Related Offences Act 2020,**]**

(b) any offence which involves violence or a threat of violence to a person other than an offence—

(i) referred to in *paragraph (a)*, or

(ii) under *section 39*,

(c) rape,

of the Family Law Act 1995 in relation to the marriage was not granted under section 33 of that Act—

(i) prior to the coming into operation of *subsection (1)* of *section 45* of the *Domestic Violence Act 2018*, or

(ii) in accordance with *subsection (2)* of *section 45* of that Act.".

Amendment of section 39 of Civil Liability and Courts Act 2004

50. (1) Section 39 of the Act of 2004 is amended in the definition of "relevant enactment" by the substitution—

(a) of the following paragraph for paragraph (h):

"(h) section 33 (for the purposes of *section 45(2)* of the *Domestic Violence Act 2018*) or 38 of the Act of 1995;",

and

(b) of the following paragraph for paragraph (j):

"(j) *section 23* of the *Domestic Violence Act 2018*;".

(2) Where, prior to the coming into operation of *subsection (1)(a)*, a person has contravened section 40A(1) of the Act of 2004 as respects proceedings to which paragraph (h) of the definition of "relevant enactment" in section 39 of that Act relates, then notwithstanding the repeal of section 33 of the Act of 1995 by *section 45(1)(e)*, section 40A of the Act of 2004 continues to apply to that contravention as if the amendment in *subsection (1)(a)* had not been made.

(3) Where, prior to the coming into operation of *subsection (1)(b)*, a person has contravened section 40A(1) of the Act of 2004 as respects proceedings to which paragraph (j) of the definition of "relevant enactment" in section 39 of that Act relates, then notwithstanding the repeal of section 16 of the Act of 1996 by *section 3*, section 40A of the Act of 2004 continues to apply to that contravention as if the amendment in *subsection (1)(b)* had not been made.

Amendment of Civil Partnership and Certain Rights and Obligations of Cohabitants Act 2010

51. The Act of 2010 is amended—

(a) in section 115, by the substitution of the following paragraph for paragraph (a):

"(a) a safety order, barring order, interim barring order or protection order under the *Domestic Violence Act 2018*;",

(b) in section 119(1), by the substitution of the following paragraph for paragraph (d):

"(d) an order under the *Domestic Violence Act 2018*;",

and

(c) in section 139, in the definition of "civil partnership law proceedings", by the substitution of the following paragraph for paragraph (b):

"(b) under the *Domestic Violence Act 2018*, or".

Amendment of Schedule 3 to National Vetting Bureau (Children and Vulnerable Persons) Act 2012

52. Schedule 3 to the National Vetting Bureau (Children and Vulnerable Persons) Act 2012 is amended by the substitution of the following paragraph for paragraph 1:

"1. An offence under section 17 of the Domestic Violence Act 1996 or *section 33*, *38* or *39* of the *Domestic Violence Act 2018*.".

Amendment of section 61 of Animal Health and Welfare Act 2013

53. Section 61(1) of the Animal Health and Welfare Act 2013 is amended in paragraph (e) by the substitution of "an order has been made under the *Domestic Violence Act 2018* or an order has been made which is treated, in accordance with *section 41* of that Act, as if it had been made under that Act" for "an order has been made under the Domestic Violence Act 1996".

Amendment of section 2 of Assisted Decision-Making (Capacity) Act 2015

54. Section 2 of the Assisted Decision-Making (Capacity) Act 2015 is amended by the substitution in subsection (1) of the following definition for the definition of "safety or barring order":

" 'safety or barring order' means a safety order or barring order made under the Domestic Violence Act 1996 or under the *Domestic Violence Act 2018*;".

Amendment of section 3 of Mediation Act 2017

55. Section 3(1) of the Mediation Act 2017 is amended by the substitution of the following paragraph for paragraph (h):

"(h) proceedings under the *Domestic Violence Act 2018*;".

Amendment of section 2 of Criminal Justice (Victims of Crime) Act 2017

56. Section 2(1) of the Criminal Justice (Victims of Crime) Act 2017 is amended in the definition of "protection measure" by the substitution of the following paragraph for paragraph (c):

"(c) advice regarding safety orders, barring orders, interim barring orders, emergency barring orders and protection orders within the meaning of the *Domestic Violence Act 2018*;".